

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION FOR FURTHER EXTENSION OF SCHEDULING DEADLINES

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”), and Respondent CMA CGM S.A. (“Respondent” or “CMA CGM” and, collectively with PKDC, the “Parties”), by their respective undersigned counsel, hereby submit this Joint Motion for a Further Extension of Scheduling Deadlines (“Motion”) to allow for the completion of ongoing discovery including finishing the review of already exchanged discovery, completion and review of responses of Parties’ second sets of discovery, depositions, and a potential resumption of discussions regarding potential settlement in light of the discovery already exchanged. As discussed below, good cause exists for the instant Motion.

I. Background

Following entry of the original Scheduling Order in this matter, the Parties have been actively engaged in discovery. However, due to the complexity of the matter and the volume of discovery necessary, the parties have sought several previous extensions. The last was filed on August 21, 2025, wherein the parties jointly requested a 60-day extension to address electronic discovery issues and complete document production. The FMC granted the request and issued an Amended Scheduling Order extending the deadlines as set forth below:

October 20, 2025	Disclosure of initial expert reports, if any
October 20, 2025	Last day to serve interrogatories, requests for admission, and RFPs
November 3, 2025	Complete depositions of fact witnesses
November 3, 2025	Disclosure of rebuttal expert reports, if any
November 18, 2025	Complete expert depositions
November 18, 2025	Close of discovery
December 22, 2025	Complainant's initial brief, proposed findings of fact, and appendix
January 22, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
January 30, 2026	Complainant's reply and responses to proposed findings of fact

In accordance with the Amended Scheduling Order, the Parties continue to engage in discovery. To date the parties have substantially responded to each other's first sets of discovery. The exchanges included several tens of thousands of individual documents including emails and spreadsheets. The Parties have reviewed substantial portions of the exchanges but due to the volume (which is in the range of several hundreds of thousands of pages), the review continues. Further, Respondent has already served its second Set of Interrogatories, to which the Complainant has responded and on October 10, 2025, Complainant served its Second Set of Interrogatories and Second Request for Production of Documents which remains pending. The Parties agree that additional time is necessary to complete the discovery exchanges and to provide adequate opportunity for review in advance of depositions. The Parties also seek the additional time to facilitate potential settlement discussions which, if successful, would conserve the resources of both the Commission and the Parties.

In light of the scope and complexity of discovery, the pending second-round discovery requests, the need to fully review and analyze productions prior to deposition, and potentially continue talks on potential resolution, the Parties respectfully request an additional extension of

ninety (90) days on outstanding deadlines.

The Parties further note that although the FMC remains closed due to the ongoing government shutdown, the Parties are submitting this Motion to preserve procedural deadlines and demonstrate their continued diligence in advancing this matter.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties submit good cause exists in this instance.

a. Extension of Discovery and Briefing Deadlines

FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. § 502.141(g)) which is sufficient time for many disputes. However, as explained in earlier motions, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery spanning multiple years. Given the breadth and complexity of the issues, extensive electronic document collection and production have been required, which is itself time-consuming and technically complex.

The Parties note that in complex matters such as the instant case, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening

the record because Commission precedent “favors the agency making its decision based on the most complete record available”).

Indeed, the FMC has recently allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised Scheduling Order, Order on Motions, January 11, 2024.

III. Proposed Amended Schedule

Given that the Parties are working diligently to complete the necessary but voluminous discovery in this matter, and the approaching holiday period, the Parties respectfully request a 90-day extension of the current Amended Scheduling Order as set forth below:

Event	Current Amended Deadline	Proposed Extended Deadline
Disclosure of initial expert reports, if any	October 20, 2025	January 18, 2026
Last day to serve interrogatories, requests for admission, and RFPs	October 20, 2025	January 18, 2026
Complete depositions of fact witnesses	November 3, 2025	February 1, 2026
Disclosure of rebuttal expert reports, if any	November 3, 2025	February 1, 2026
Complete expert depositions	November 18, 2025	February 16, 2026
Close of discovery	November 18, 2025	February 16, 2026
Complainant’s initial brief, proposed findings of fact, and appendix	December 22, 2025	March 22, 2026
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	January 22, 2026	April 22, 2026
Complainant’s reply and responses to proposed findings of fact	January 30, 2026	April 30, 2026

WHEREFORE, the Parties jointly pray that this joint Motion for an extension be granted and issue an Amended Scheduling Order extending all deadlines by ninety (90) days from the dates established in the prior Amended Scheduling Order.

Dated: October 20, 2025

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

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